

Ram Sewak v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 31 July 2024 · 2024:AHC:123260-DB · WRIT - C No. - 24836 of 2024 · **Writ disposed; petitioner relegated to Clause 6.5 objections; recovery stayed four weeks.**

HEADNOTE

A writ challenging a recovery citation for electricity dues is not decided on merits where Clause 6.5 of the Electricity Supply Code, 2005 affords an efficacious objection. The petition is disposed of with liberty to object before the designated officer; recovery is kept in abeyance only for a short window pending a speaking order, and lapses if no objection is filed.

FACTUAL SUMMARY

The petitioner, Ram Sewak, invoked the writ jurisdiction of the Allahabad High Court to quash a recovery citation dated 30 May 2023 issued by respondent no.5 for electricity dues. Counsel appeared for the petitioner, the State, and the distribution licensee. The Division Bench treated the petition as directed against coercive recovery of alleged electricity arrears and considered only whether the Code afforded an alternative route of objection, without entering the correctness of the billed amount.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection to recovery of electricity dues

HOLDING

A consumer challenging a recovery citation for electricity dues has an efficacious remedy of filing an objection under Clause 6.5 of the Electricity Supply Code, 2005. The writ is disposed of with liberty to file objections within two weeks before respondent no.3, who shall decide them by a speaking order within the next two weeks. Recovery remains in abeyance for four weeks and thereafter abides by that decision; if no objection is filed, the order is of no avail and respondents may proceed in accordance with law. ¶ 2-4

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging a recovery citation for electricity dues is not decided on merits where Clause 6.5 of the Electricity Supply Code, 2005 affords an efficacious objection.. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION AND THE UNDERLYING ELECTRICITY DUES

Merits of the demand left to respondent no.3 on a Clause 6.5 objection. ¶ 2-3